

HB 2291 -- APPLICATIONS FOR PROPERTY DEVELOPMENTS

SPONSOR: Casteel

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Government Efficiency by a vote of 13 to 6. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 6 to 5.

This bill requires a political subdivision to approve or deny an applicant's permit request, as defined in the bill, within 30 calendar days. If no response is received by the applicant within 30 days, the request will be deemed approved and the applicant is authorized to proceed with construction.

If a political subdivision denies a request, it must state in writing the reasons for denial. Information necessary to be included in the written denial is specified in the bill.

If an applicant resubmits a request that was denied, the political subdivision cannot issue a subsequent denial that includes additional unrelated reasons that were not specified in the initial denial.

If a request is incomplete, the political subdivision must notify the applicant within 20 calendar days of receipt of the request, and if an incomplete request is resubmitted, the political subdivision has 10 days to approve or deny the request on the merits. The political subdivision must state in writing the reason for denial of the request as incomplete.

This bill is similar to HCS HB 1264 (2025).

PROPOSERS: Supporters say that this bill will reduce delays in construction projects, which will in turn increase economic development across the State. Supporters further state that currently, many projects are on an indefinite hold, which has resulted in municipalities missing out on potential tax revenue and additional housing for residents. Supporters also say that the bureaucrats who make the decisions on whether a building permit gets approved move at a snail's pace, and that this bill would require those government workers to specifically give a reason as to the delay.

Testifying in person for the bill were Representative Casteel; and FGA Action.

OPPONENTS: Those who oppose the bill say that the provisions of this bill will result in building projects that do not have to follow all of the normal safety and regulatory requirements, such as necessary inspections of work done and material used. Opponents further state that building projects can vary in scope, and as a result, many projects can operate on different timelines; the language in the bill requires that the government provide the necessary permits within a 30 day window, which is not enough time to accurately assess the proposed building project and its potential impact on surrounding areas.

Testifying in person against the bill were Missouri Municipal League; Municipal League of Metro St. Louis; and Arnie Dienoff.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.